

Court No. - 38

Case :- WRIT - C No. - 7672 of 2019

Petitioner :- Sonu Rawat

Respondent :- Dakshinanchal Vidut Vitaran Nigam Limited
And Another

Counsel for Petitioner :- Sanjay Kumar Dubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

By means of this writ petition, the petitioner has challenged the notice of disconnection and threat of filing of FIR against the petitioner for electricity theft.

Learned counsel for the petitioner submits that the petitioner has continuously been paying the bills, however, an inflated amount has been shown which he disputes. It is to be noted that if the petitioner is disputing the bills, he has to approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005.

In case the petitioner approaches the Executive Engineer concerned, he will consider the claim of the petitioner and pass appropriate orders within one month from the date a certified copy of this order along with objection is presented to it.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to notice of disconnection dated 12.1.2019.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 7.3.2019

sfa/

(Jayant Banerji, J) (Abhinava Upadhya,J)